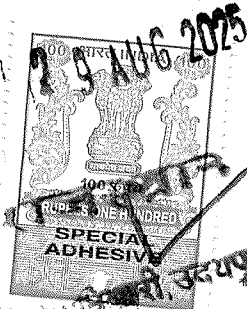


100/-

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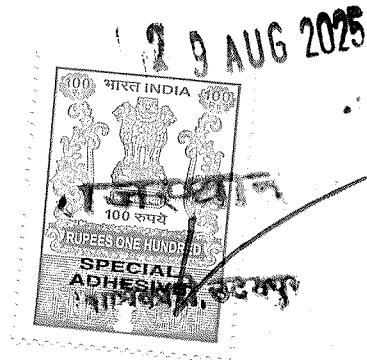
This sheet affixed/printed with stamp forms an integral part of the
Loan agreement XVFPJRP00008329572 dated 27.9.25 entered
between Cholamandalam Investment and Finance Company
Limited and Wevois Labs Pvt Ltd



100/-

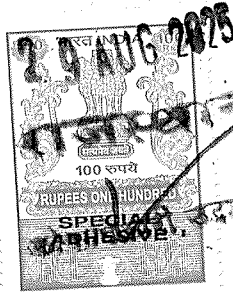
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between Cholamandalam Investment and Finance Company
Limited and Nevois Labs Pvt Ltd



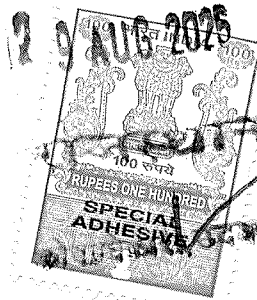
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Limited and Wevois labs prt ltd



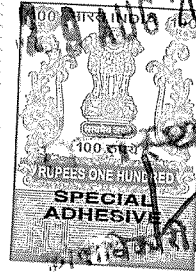
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between Cholamandalam Investment and Finance Company
Limited and Wevo's labs Pvt Ltd



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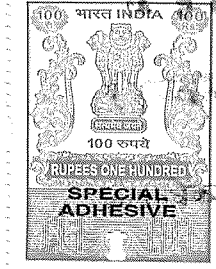
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Loan agreement XVFPJRP00008330199 dated 27.9.25 entered
between Cholamandalam Investment and Finance Company
Limited and Wervos labs Pvt Ltd



100/-

Sr. No. 3265920

This sheet affixed/printed with stamp forms an integral part of the
Loan agreement XVFPJRP00008330555 dated 27.9.25 entered
between Cholamandalam Investment and Finance Company
Limited and nevois labs pvt ltd



29 AUG 2019

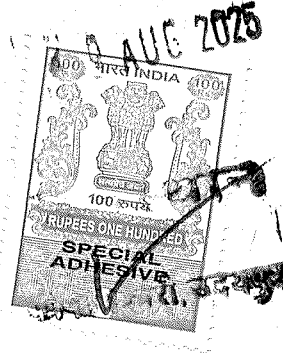
स्थान

श्री. उदयपुर

100/-

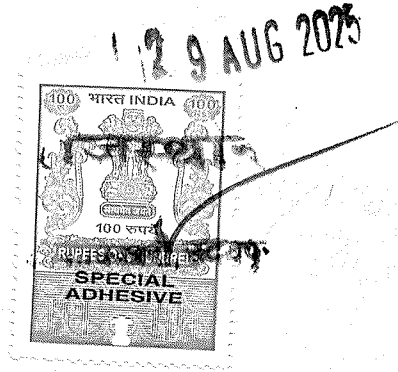
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Loan agreement XVFPJRP0000 8330780 dated 27. 9. 25 entered
between Cholamandalam Investment and Finance Company
Limited and Nevo's labs Pvt Ltd



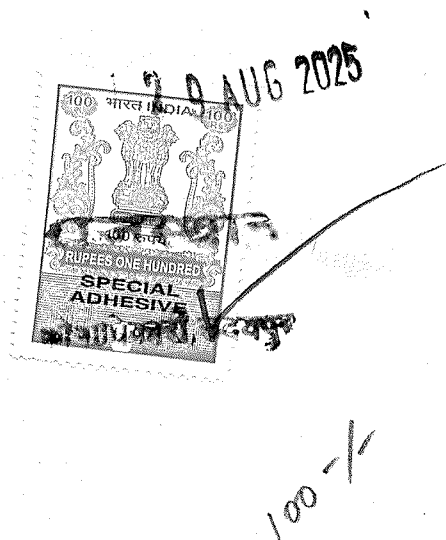
Sr. No. 3265922

This sheet affixed/printed with stamp forms an integral part of the
Loan agreement XVFPJRP00008336931 dated 27.9.25 entered
between Cholamandalam Investment and Finance Company
Limited and Wevois labs Pvt Ltd



Sr. No. 3265923

This sheet affixed/printed with stamp forms an integral part of the
Loan agreement XVFPJRP00008330935 dated 27.9.25 entered
between Cholamandalam Investment and Finance Company
Limited and Nevois labs Pvt Ltd



Sr. No. 3265924

This sheet affixed/printed with stamp forms an integral part of the
Loan agreement XVFPJRP00008331182 dated 27.9.25 entered
between Cholamandalam Investment and Finance Company
Limited and Nevois labs Pvt Ltd

LOAN AGREEMENT - VEHICLE / EQUIPMENT FINANCE

THIS AGREEMENT made at the place and date mentioned in the Schedule of the Agreement.

The Borrower, Co-Borrower more particularly described and set out in the Schedule hereof (hereinafter referred to as "the Borrower") and the Guarantor/s, more particularly described and set out in the Schedule hereof (hereinafter referred to as "the Guarantor") which expressions shall unless repugnant to the context or meaning thereof, be deemed to mean and include his/her/its/their respective heirs, executors, administrators, nominees, attorneys, and legal representatives (where the Borrower/Guarantor is an individual/sole proprietor), successors-in-interest as the case may be, (where the Borrower/Guarantor is a company within the meaning of the Companies Act, 2013 or any other body corporate) the partners from time to time of the firm, their survivor(s) and the heirs, executors, administrators, legal representatives, nominees and successors of the partners (where the Borrower/Guarantor is a partnership firm), of the ONE PART

AND

CHOLAMANDALAM INVESTMENT AND FINANCE COMPANY LIMITED, a company incorporated and registered under the Companies Act, 1956 and having its Registered Office at 'Chola Crest', C 54&55, Super B-4, Thiru V. Ka Industrial Estate, Guindy, Chennai - 600 032, (hereinafter referred to as "the Company"), which expression shall unless it be repugnant to the context or meaning thereof mean and include its successors and assigns of the **OTHER PART**

WHEREAS

- A) The Company is inter-alia engaged in the business of extending financial assistance for the purchase/refinance of motor vehicles, machinery and other Assets;
- B) The Borrower has requested the Company for financial assistance for the purchase/refinance of vehicle/machinery/equipment/asset more fully described in the Schedule against the security of the said vehicle, machinery, equipment or assets;
- C) The Borrower in consideration of having availed the loan facility has agreed to abide by the terms and conditions stipulated by the Company and more fully set out hereunder and in particular not to deal with the Schedule mentioned/collateral Asset, by way of sale, alienation, hypothecation, pledge or in any other manner whatsoever except as herein authorized by the Company in writing, until the entire due amount under this Agreement is paid to the Company;
- D) The Guarantor has requested the Company to extend the said financial facility to the Borrower and in consideration for the above, the Guarantor has agreed to guarantee to the Company the due performance by the Borrower of the contractual terms and conditions contained herein and discharge all liabilities as stipulated in this Agreement;
- E) The Company, relying upon the above representations made by the Borrower and the Guarantor, has agreed to provide the loan sought to the Borrower, upon the terms and conditions stipulated hereinafter.

NOW THIS AGREEMENT WITNESSETH AS FOLLOWS:

DEFINITIONS AND INTERPRETATIONS:

In this Agreement, unless there is anything repugnant to the subject or context thereof, the expressions listed below shall have the following meanings. The terms and expressions not defined herein shall, where the interpretation and meaning have been assigned to them in terms of the General Clauses Act, 1897, have that interpretation and meaning.

- a) The term "Agreement" means and includes this Loan agreement, the Schedule/s, annexures, Welcome Letter, any addenda, supplemental agreements or attachments annexed hereto or hereafter to this Agreement.
- b) The term "Asset" means and includes the motor vehicle/s or any other machinery or equipment/s or any other asset/s, whether new or used, described in the Schedule to this Agreement, for the purchase/refinance of which the Loan is being granted hereunder and which is hypothecated or offered or caused to be offered as security by the Borrower in favour of the Company. "Asset/s" shall include all accretions and additions thereto whenever made by the Borrower, including by way of body building, engine up-gradation and the like.
- c) The expression "Due Date" means, the date on which an installment of the principal amount of the Loan, interest and/or any other amount payable under this Agreement and/or balance of the Loan amount as the case may be, is due for payment under any clause of this Agreement.
- d) The expression "Electronic Clearing Services" or "ECS" and "National Automated Clearing House" or "NACH" means a debit clearing service including E-NACH or any other mandate notified by Reserve Bank of India, participation in which has been consented to in writing by the Borrower for facilitating payment of installments under this Loan agreement.
- e) The term "Installment" means the amount of payable on each Due Date as specified in the Welcome Letter, necessary to amortize the Loan with interest over the period of Loan.
- f) The term "Loan" means the loan amount provided for in this Agreement and the Schedule.
- g) The expression "Penal Charges" means the charges levied by the Company at the rate specified in the Schedule on any delay in the payment of installments or any other amounts due and payable by the Borrower to the Company from the Due Dates to the date of actual payment.
- h) The term "Preclosure" means premature repayment as per the terms and conditions laid down by the Company in that behalf and in force at the time of such repayment.
- i) The expression "Post Dated 'Cheque (s)' or 'PDCs'" means cheques drawn by the Borrower in favour of the Company for the amount of the installment bearing the dates to match the date of each installment.
- j) The expression "Rate of Interest" means the rate of interest referred to in Article 2 of this Agreement.
- k) The term "Repayment" means the repayment of the principal amount of Loan together with interest thereon by way of installments including Penal Charges or otherwise, commitment and/or any other charges, premia, fees or other dues payable in terms of this Agreement to the Company and means in particular, amortization provided for in Article 6 of this Agreement.
- l) The term "Schedule" means the Schedule to this Agreement.
- m) The expression "Welcome Letter" means a letter issued by the Company to the Borrower, after the execution of this Agreement, setting out the Due Dates, installments payable on each Due Date, frequency of paying installments and the breakup of principal and interest under each installment.

1. TERMS OF THE LOAN

- a) The Company does hereby agree to grant as Loan to the Borrower for the purpose of purchase/refinance of the Asset, the sum stated in the Schedule (Loan Amount), on the terms herein set forth.
- b) The Loan provided under this Agreement shall be for the period as specified under tenure of Loan in the Schedule commencing from the date specified therein (First Installment Date), unless this Agreement is terminated earlier in a manner stipulated herein and the Borrower and the Guarantor shall jointly and severally repay the same as per the terms set out under this Agreement.

2. INTEREST:

- a) The Rate of Interest on the Loan amount shall be as specified in the Schedule hereof and the Borrower shall be liable to pay the same from the date of disbursement of the Loan.
- b) The Rate of Interest stipulated in the Schedule shall remain fixed during the term of the loan facility. The Company shall, however, at its discretion, be entitled to revise prospectively from time to time, upwards or downwards, the Rate of Interest applicable for the Loan during the subsistence of the Agreement. Such variation(s) would be subject to the terms of sanction letter and would be intimated to the Borrower and binding upon the Borrower.
- c) Interest shall accrue from day to day and be computed on monthly basis or on actual number of days as the case may be.
- d) The Borrower shall pay all duties, cesses, licence fees, taxes on interest, other taxes, insurance premia and other charges/outgoings whatsoever in respect of this Agreement or in relation to the Asset, whether with retrospective or prospective effect and if the Company makes any such payments, the Borrower shall reimburse the Company within 3 days from the date of due intimation from the Company in this regard. In the event the Borrower fails to reimburse the said amount, Penal Charges shall accrue thereon from the date of payment by the Company to the date of actual reimbursement of the said amount by the Borrower to the Company.
- e) The borrowing under this Agreement is a commercial transaction and the Borrower/Guarantor waives any defense under the usury or other laws relating to charging of interest.
- f) Computation of Interest - The Installment comprises of principal and interest calculated on the basis of Rate of Interest mentioned in the Schedule hereto and is rounded off to the nearest rupee calculated on reducing balance.

3. SOURCING FEE:

The Borrower has expressed his consent without any coercion or undue influence to pay to the Company a sourcing fee as agreed by the Borrower at the time of submitting the application to the Company for sanction of the Loan. The said fee which is more specifically mentioned in the Schedule of the Agreement shall not be refundable to the Borrower under any circumstances, even if the Loan is not availed or granted by the Company subsequent to sanction of a loan.

4. DISBURSEMENT:

- a) The Borrower shall indicate the manner of disbursement of Loan by the Company as specified by him. However, the Company shall have the sole discretion to determine the manner of disbursement, which shall be deemed to be the disbursement to the Borrower as contemplated under this Agreement. In the case of purchase of new Assets, the Loan amount, may, at the option of the Company, be disbursed by the Company directly to the dealer/manufacturer and such disbursement shall be deemed to be disbursement to the Borrower. In case of purchase of used Asset(s), the Company shall determine the manner of the disbursement, i.e., either to the owner/seller of the Asset or to the dealer or to the Borrower and such disbursement shall be deemed to be the disbursement to the Borrower as contemplated under this Agreement. In case of refinance, the Company shall disburse in favour of the Borrower in the manner determined by the Company. All such disbursements made to any other party on behalf of the Borrower shall be construed as a payment made to the Borrower himself which the Borrower herein accepts.
- b) Prior to disbursement of the Loan by the Company, the Borrower shall provide the Company with documents evidencing payment of his own contribution towards margin money for buying the Asset.
- c) All disbursements to be made by the Company to the Borrower in terms of this Agreement shall be by cheque duly crossed, marked "A/c. Payee only" or by Demand Draft or any other accepted modes of transfer of funds permitted under the Indian banking system, at the sole, discretion of the Company. The collection charges or such other charges levied, if any, in respect of all such cheques or modes of transfers will have to be borne by the Borrower, irrespective of the time taken for transit/collection/realization of the cheque by the Borrower or its bank.

- d) The Borrower herein agrees that the date of disbursement shall be the date of handing over of the cheque/payment instruments or the date on which the Company effects credit to the Borrower's bank account directly through NEFT/RTGS/any other mode of electronic fund transfer as the case may be.
- e) The Borrower shall not be entitled to cancel the Loan or refuse accepting the disbursement except with the consent of the Company and upon payment of necessary cancellation charges.
- f) If the Borrower requests cancellation of the Loan, for whatsoever reason, post disbursement of the Loan, but before the due date of first instalment, the Company may consider the same at its sole discretion. In such an event, subject to the Company agreeing to cancellation, the Borrower shall forthwith repay the Loan together with cancellation charges @ 16% p.a., or such other rate intimated to the Borrower, on the disbursed Loan amount from the date of disbursement till the date of repayment by the Borrower.
5. **CONDITIONS PRECEDENT:**
The Loan Amount will be disbursed by the Company to the Borrower on fulfilment of the following conditions precedent ("Conditions Precedent"). The Borrower/Guarantor shall comply with the Conditions Precedent by the date mentioned in the Schedule hereunder written (Date of Agreement), or within such date as may be extended by the Company. Failure to fulfil the Conditions Precedent by such date could result in the Company refusing to disburse the Loan and if for any reason or exceptional circumstances, already disbursed, shall cause to be recalled in totum. The Conditions Precedent required to be fulfilled by the Borrower/Guarantor are:
- The representations and warranties of the Borrower/Guarantor contained in this Agreement shall be true (i) as on the date hereof, and (ii) as on the date of the intended disbursement (as if made on such date) / availing of the Loan;
 - If so required by the Company, guarantee/s acceptable to the Company shall have been executed in favour of the Company;
 - The Borrower shall have executed and delivered to the Company the Post Dated Cheques/ECS mandates/ NACH/NEFT/ such other applicable authorizations or instruments in a manner as may be required by the Company;
 - The Borrower and/or the Guarantor/s shall have created such security in favour of the Company, as may be acceptable to the Company ("the Security"). The Borrower/Guarantor shall have a clear and marketable title to such Security free from all encumbrances, liens and defects in title. Provided that where the Borrower/Guarantor is required to make any registrations and filings in respect of the creation of such Security under applicable law, the Borrower/Guarantor shall make all such registrations and filings in this regard. Provided further that where the Borrower/Guarantor needs any consents for the creation of any such Security, the Borrower/Guarantor shall have also obtained all such consents prior to the creation of such Security.
 - The Borrower/Guarantor and/or such other person as the Company may require shall have executed such other documents or writings as the Company may require and shall have performed such other actions and executed such other documentation as the Company may require.
 - Non-existence of event of default: No event of default as defined in Article 10 shall have happened and be continuing.
 - Installments in advance: The Borrower agrees to pay to the Company such number of installments in advance as set out in the Schedule/s either at the time of execution of this Agreement or at any time, herein after as specified by the Company. Subject to the other provisions of this Agreement, the advance installments shall be adjusted against installment in the manner set out in the Schedule. The Company shall not be liable to pay any interest on the advance installments.
6. **REPAYMENT:**
- The Borrower shall pay to the Company all sums of money which may become payable by the Borrower to the Company under this Agreement as and when it falls due, without any delay or default. The Borrower acknowledges that strict compliance to the repayment schedule is an essential condition for grant of the Loan and that time is the essence of this contract.
 - The Repayment shall be made by the Borrower in installments as per the terms set out in the Schedule. The repayment schedule mentioned herein above is without prejudice to the right of the Company, to be paid on demand as contemplated under this Agreement, the entire Loan along with interest and other dues as contemplated under this Agreement. Further, the computation/liquidation of the Installment will be without prejudice to the right of the Company to re-compute the amount of Installments, including in case it is discovered at any stage that the Installments have been computed wrongly. The Installments provided in the Schedule shall not however, affect the rights of the Company to terminate the Agreement at any time if it deems fit and demand payment of all amounts already fallen due and remaining-unpaid, if any, together with all future installments and any other amounts as may be due, subject to any discount on the future installments as may be allowed by it.
 - All amounts payable by the Borrower to the Company, shall be paid without any deductions on or before the Due Dates failing which the Borrower's Loan account shall be classified as special mention account (SMA)/ non performing account (NPA) or under such other category as per the applicable guidelines of the Reserve Bank of India (RBI). At present, the basis for classification of SMA and NPA categories and the example for the same are as mentioned in the Schedule. If the Borrower's Loan account is once classified as NPA/SMA, the same shall be upgraded as standard asset only if the entire arrears of interest and principal are paid by the Borrower.
 - The Borrower shall be liable to pay the Installments as stipulated in the Schedule irrespective of the Asset being delivered to the Borrower by the dealer/manufacturer or not and notwithstanding any disputes, objections, protests, complaints or grievances which the Borrower may have with or against the dealers/manufacturer or in respect of the delivery of the Asset or in respect of the Asset itself.
 - The charging of Penal Charges shall however not relieve the Borrowers obligation of strict compliance with repayment schedule being an essential condition for the grant of Loan.
 - The Borrower confirms having perused, understood and agreed to the Company's method of calculating the installments as also the division thereof into principal and interest.
 - If the Due Date falls on a day which is a holiday, the payment is to be made on the immediately preceding working day.
 - Any advance payments made by the Borrower prior to the Due Dates for whatsoever reasons, shall be given credit to in the Borrower loan account. Adjustments of such advance amount received against installment will be given for such payments only on the Due Dates. Such advance payments received will not be eligible for any rebate in interest.
7. **MODE OF PAYMENT OF INSTALLMENTS:**
- Subject to the terms and conditions stipulated hereunder, the repayment of the Loan shall be by way of Standing Instructions (SI)/Electronic Clearing System (ECS)/NACH or such other mode accepted by the Company from time to time authorizing the Company to collect the installments due by the Direct debit to the Borrower's bank account, Post Dated Cheques or by remittance in cash or by Demand Draft. Notwithstanding anything stated elsewhere in the Agreement, if the regulations permit the repayment of Loan only by way of NACH/ECS/RECS/EFT facilities, the Company shall accept payments through such facilities.
 - The Borrower shall deliver to the Company, Post Dated Cheques/ECS or ACH mandates for the payment of Installments. Submission of such Post Dated Cheques or mandates shall be deemed to be an unconditional and irrevocable authority given by the Borrower, to the Company for presenting such cheques/mandates, to present them on their respective dates and the Borrower warrants that the cheques / mandates will be honoured on presentation. Any non-presentation of a ACH or ECS mandate(s)/PDC(s) due to any reason will not affect the liability of the Borrower to pay the installments or any other sums that may become due and payable under this Agreement.
 - If any one or more than one or all of the PDCs/ECS/NACH mandate delivered by the Borrower pursuant to Article 7(a)
 - is/are lost, destroyed or misplaced while in the custody of the Company or
 - become(s) non encashable due to death, insolvency, lunacy, termination of authority or otherwise of the signatory or any or more of the signatories (if more than one) thereof or liquidation or any moratorium of the drawee bank, then in such an event, the Borrower shall, on receipt of the intimation of such loss, destruction or misplacement (as the case may be) from the Company or immediately on the said cheques or any of those being non encashable due to the reasons mentioned above, deliver to the Company such number of cheques as are adequate to replace those that have been lost, destroyed, misplaced or become non encashable, or make such suitable alternative arrangement for repayment of Loan as is acceptable to and approved by the Company.
 - It is agreed and understood by the Borrower that non-presentation of any of the cheques by the Company due to any reason whatsoever shall not affect the liability of the Borrower to repay the amount payable under this Agreement. The Company shall not, in any way, be responsible for the delay, omission or neglect in encashment, damage or loss of any cheque(s) (already given or to be given by the Borrower to the Company in terms hereof) for any reason whatsoever.
 - If required, the Borrower, subject to the Company's permission, may swap/interchange the cheques issued and drawn in one bank to that of the other bank, on paying the Company the swap charges of an amount specified in the Schedule for every replacement.
 - Without prejudice to any other rights or remedies the Company may have under this Agreement and/or under the prevalent law, the Borrower shall be liable to pay cheque dishonour charges at the rate specified in the Schedule for dishonour of each PDC/ECS/NACH on every presentation. The levy of the charge upon dishonour of the cheque/ ECS/NACH is without prejudice to the rights of the Company under the Negotiable Instruments Act, 1881, as amended and as in force from time to time and other relevant laws.
 - Where remittances are made by way of outstation cheques, the Borrower shall be liable to pay the cheque collection charges as stated in the Schedule subject to revision at the Company's discretion from time to time.
 - The charges mentioned in the Schedule are subject to change at the sole discretion of the Company.
 - The Borrower shall not be entitled to cancel or issue stop payment instructions with respect to PDCs/ ECS or NACH mandates as long as the loan or any part of his indebtedness is due and outstanding and any such acts shall be deemed to have been committed with an intention to cheat and avoid prosecution under the Negotiable Instruments Act, 1881 as amended and in force from time to time and the Company shall be entitled to initiate appropriate criminal proceedings against the Borrower.
 - In case of closure of Loan, including Preclosure, as per the provisions of this Agreement, the Borrower shall collect the PDCs lying with the Company within 60 days, on the failure of which the Company shall have the right to destroy the same without any intimation to the Borrower.
8. **SECURITY**
- In consideration of the Company having granted or agreed to grant to the Borrower the Loan facility, subject to the terms and conditions stipulated herein, the Borrower hereby hypothecates in favour of the Company, by way of an exclusive first charge, the Asset together with all accessories, additions to or in the said Asset, whether present or future and improvements, renewals and replacements made or to be made on the Asset. The Borrower also agrees and undertakes to execute such further documents and/or file and/or register the same with such authorities as may be necessary in law or by the Company to perfect the charge of the Company over the Asset.
 - The hypothecation of the Asset shall be deemed to take place immediately on signing of this Agreement or on delivery of the Asset to the Borrower, whichever, is earlier.
 - Where the Asset is a vehicle, the Borrower shall register the same in his name within such time as is stipulated in law and shall also ensure that the hypothecation of the vehicle with the Company is duly endorsed and recorded in the Certificate of Registration.
 - Until release of the Asset from hypothecation by the Company in writing, the Borrower shall not sell, transfer or create any other hypothecation, charge, mortgage, pledge, lien or encumbrance over the Asset or any part thereof in any manner whatsoever without prior approval of the Company. The Borrower shall not part with the possession, give on hire, lease, leave and license or otherwise deal with the Asset or any part thereof and shall not permit or suffer to be done any act, deed, matter or thing which may adversely affect or in any way prejudice the rights and interest of the Company over the Asset. Where the Asset is a non-registrable vehicle/equipment, the Borrower shall ensure that necessary endorsement being made in the original invoice of the said non-registrable vehicle/equipment as may be required by the Company. If the Borrower is a Company, it shall register the charge with the Registrar of Companies within the statutory time limit and shall submit charge registration certificate in favour of the Company within the stipulated time.
 - If the Asset has not been delivered to the Borrower at the time of execution of this Agreement or registration/hypothecation not effected where the Asset is a vehicle, the particulars of Asset including registration/hypothecation in case of Vehicle, shall be intimated in writing by the Borrower to the Company within one week of taking delivery and/or registration and such particulars shall be incorporated in the Schedule hereunder as if they had been incorporated at the time of execution of this Agreement. The Borrower shall not be entitled to raise any plea of alteration of the Agreement as a result thereof or question the validity or enforceability of the charge created in favour of the Company over the Asset.
 - The Borrower has also executed a Demand Promissory Note in favour of the Company by way of security for the amount of the Loan and the interest thereon.
 - The hypothecation of the Asset shall remain effective and in force until due payment by the Borrower of all amounts due under this Agreement or any other agreement by the Borrower to the

Company including interest, Penal Charges, costs, charges and all amounts as may become due and payable pursuant to the terms hereof and until the Company issues a certificate discharging the security created herein.

- h) The hypothecation shall not be affected, impaired or discharged by death, insolvency, arrangement with creditors, physical or mental disability, winding up (voluntary or otherwise) or by any merger or amalgamation, reconstruction, takeover of the management, dissolution or nationalisation (as the case may be) or any other change in status of the Borrower.
 - i) The Guarantor hereby unconditionally guarantees the due and prompt repayment of all and every sum payable by the Borrower under this Agreement and guarantees the due performance and observance by the Borrower of all the stipulations and conditions mentioned in this Agreement. The Guarantor agrees that he shall not be discharged from the guarantee hereby provided, by the Guarantor giving time to the Borrower for payment of any sum or any other indulgence or the failure, omission or inability of the Company to enforce its rights against the hypothecated Asset. The Guarantor agrees that as between the Company and himself, the Guarantor is the principal debtor jointly with the Borrower and hence gives up any right conferred on sureties under Sections 133, 134, 139 and 141 of the Indian Contract Act, 1872 or any other provisions thereof. The Company has the right to proceed against the Borrower/Guarantor in any order at its discretion and the Guarantor hereby agrees that he shall not question the claim made by the Company on any grounds.
 - j) The Company may, at any time, require the Borrower to furnish such additional securities, including guarantee(s) from any third party as the Company may deem fit in its sole discretion. In such an event the Borrower shall provide additional security and in this regard execute such agreements, undertakings, documents, power of attorney/s that may be required by the Company. The Borrower shall not revoke Agreement or terminate any such contracts, agreements, undertakings, documents etc., till all the amounts due and payable by the Borrower to the Company under this Agreement is completely paid and the Borrower undertakes to furnish the same to the Company within 7 days of receipt of such request from the Company.
 - k) The Borrower as well as the Guarantor agree and undertake that notwithstanding the hypothecation, guarantee or any other security, they shall always remain personally liable for payment of all amounts due to the Company under this Agreement which may be enforced against them, their estate and properties irrespective of any other rights or remedies as may be available to the Company.
 - l) Notwithstanding anything contained above, the Borrower on an event of default, for the due payment and discharge of all or any sum which are or at any time may become payable by the Borrower to the Company, agrees to provide additional security and create a mortgage (charge on the property more particularly described in the Schedule hereto in favour of the Company and in form and manner as required by the Company, to be held by the Company as first and exclusive charge in its favour.
 - m) Where the Borrower is a company, the Borrower as well as the Guarantor agree and undertake that notwithstanding the hypothecation the Borrower will file Form CHG-1 with the Registrar of Companies for creating charge over the Asset.
 - n) The Borrower as well as the Guarantor agree and undertake that the Company shall have a continuing charge on the Schedule mentioned Asset, in the event of Borrower or Guarantor having any obligation under any other agreement entered with the Company. Further the Borrower and Guarantor also agree and undertake that the Company shall continue to have a charge and right to take possession on such Schedule assets on all existing agreements entered into by the Borrower or Guarantor with the Company.
 - o) Without prejudice to the rights of the Company stated in any other documentation, upon occurrence of any event of default as specified under Article 10 of this Agreement or in case of breach of any terms of the Agreement, the Company shall have the absolute discretion to enforce the security and appropriate towards the entire amount payable by the Borrower under the Agreement any of the security offered by the Borrower in any order as it may deem fit and proper. In the event of enforcement of the Security, the Company shall not be liable for any loss or deficiency in the amount realized or answerable for any decrease in the value of the Security. Such sale shall be done by the Company without any accountability to the Borrower and the Company shall not be liable for loss/damage/diminution in value of securities on account of exercise /non exercise of rights by the Company and the Borrower shall not be entitled to raise any claim against the Company on the ground that a higher value might or ought to have been received or dispute his liability for the remaining dues under this Agreement.
 - p) Any accretion, entitlements and all documents in respect of the security or the hypothecated asset in possession of the Borrower shall be held by the Borrower in trust and for the benefit of the Company.
- 9. ALTERATION AND RE-SCHEDULING OF THE INSTALLMENTS:**
- a) The Company at its sole discretion retains the right with no obligation, to review the facility for such further periods on such terms and conditions as it may deem fit.
 - b) The Company may on its own or upon a request from the Borrower, if it so deems fit, alter or re-schedule the Installments in such manner and to such extent as it may decide, with the formal consent of the Borrower, whereupon repayment shall be made by the Borrower as per the said alteration and re-scheduling notwithstanding anything stated in the Schedule. The Borrower shall comply with the requirements of the revision including the furnishing of Post Dated Cheques/ ECS or NACH mandates as per the revised structure.
 - c) Based on satisfactory loan repayment track record of the Borrower, the Company at its sole discretion may grant additional loans over and above the Loan granted hereunder. The additional loans may be granted only on execution of such documents as may be stipulated by the Company as per the prevailing credit norms of the Company from time to time. The Borrower shall have no right to claim the additional loans by virtue of this clause.
- 10. EVENTS OF DEFAULT:**
- The following events shall constitute an "Event of Default": -
- a) The Borrower or the Guarantor failing to perform obligations, repay the Loan or any Installment, fee, charges, or costs or any other amount due to the Company in the manner herein contained as and when it becomes due whether demanded by the Company or not; or
 - b) If in the opinion of the Company, the Borrower has withheld any critical information in relation to the Loan; or
 - c) Insolvency, winding up, voluntary or otherwise, failure in business, commission of an act of bankruptcy, general assignment for the benefit of creditors of the Borrower/Guarantor, or if the Borrower/Guarantor suspends payment to any creditors or threatens to do so, appointment of receiver/trustee or similar officer on its assets more particularly hypothecated assets under this agreement, filing of any petition in bankruptcy of by, or against the Borrower/Guarantor or filing of any petition for winding up of the Borrower/Guarantor and not being withdrawn within 30 days of being admitted; or
 - d) If the Borrower/Guarantor (being a Company) goes into liquidation for the purpose of amalgamation or reconstruction, except with prior written approval of the Company; or
 - e) If the Borrower/Guarantor ceases or threatens to cease its business; or
 - f) If it is certified by an Accountant or a Firm of Accountants appointed by the Company (which the Company is entitled and hereby authorized to do so at any time) that the liabilities of the Borrower exceed the Borrower's assets or that the Borrower is carrying on business at a loss; or
 - g) If the Borrower sells, encumbers or transfers or seeks to sell, transfer, create encumbrance, pledge on the hypothecated Asset, in any manner whatsoever without the express consent in writing of the Company; or
 - h) If the Borrower fails to pay any insurance premium for the hypothecated Asset; or
 - i) The hypothecated Asset being confiscated or attached, taken into custody by any authority or is subjected to any execution proceeding; or
 - j) If the Borrower fails to pay any tax, impost, duty or other imposition or charges/outgoings or to comply with any other law, regulation, formalities required to be completed in respect of the hypothecated Asset under law from time to time; or
 - k) The hypothecated Asset being stolen or untraceable for any reason whatsoever; or
 - l) The hypothecated Asset being damaged or endangered or damaged in any manner or rendered unfit for use or bodily injury is caused to the third party by accident with the Asset; or
 - m) Any of the PDCs/NACH or ECS mandates delivered or to be delivered by the Borrower to the Company in terms and conditions hereof is not honoured / en-cashed for any reason whatsoever on presentation; or
 - n) If any instruction being given by the Borrower for stop payment of any PDC/ECS/NACH mandate for any reason whatsoever or if any Post Dated Cheques/ECS/NACH mandate issued by the Borrower to the Company is dishonored; or
 - o) The Borrower failing to supply a copy of the registration certificate of the hypothecated Asset with hypothecation endorsement made in favour of the Company; or
 - p) The Borrower failing to file the particulars of the Asset (both old and new vehicle/equipment) as provided in this Agreement; or
 - q) If any circumstance or event occurs which is prejudicial to or impairs or imperils or jeopardize or is likely to prejudice, impair, imperil, depreciate or jeopardise the interest of the Company or any security given by the Borrower/Guarantor of any part thereof; or
 - r) The Borrower/Guarantor committing breach of any of the terms, covenants and conditions herein contained or any information given or if any of the representations under this Agreement or any other document submitted is found to be false, inaccurate or misleading; or
 - s) If subsequent to the grant of the Loan the Borrower and/or the Guarantor/s (When spouse) is/are divorced or any proceeding is taken or commenced or initiated in any family court for the same or otherwise; or
 - t) On the death/lunacy or any other legal incapacity of the Borrower; or
 - u) Upon happening of any substantial change in the constitution or management of the Borrower or reorganization of the Borrower without previous written consent of the Company or upon the management of the Borrower ceasing to enjoy the confidence of the Company; or
 - v) The Borrower/Guarantor is in breach of any other loan/facility/any agreement with any other person; or
 - w) The Borrower/Guarantor commits any default under any other agreements with the Company in which the Borrower/Guarantor is either a Borrower/Guarantor; or
 - x) Any defect/infirmity in the guarantee provided by the Guarantor/s rendering the guarantee ineffective/operative; or
 - y) If it becomes unlawful for the Borrower to perform any of its obligations under this Agreement or any other related document or it becomes unlawful for the Guarantor or any other person (includes the Borrower) to perform any of its obligations under this Agreement; or
 - z) This Agreement or any other related document, whether executed by the Guarantor or any other person (includes the Borrower) becomes ineffective or unlawful or is declared void or is alleged by the Borrower or Guarantor or any other person to be ineffective, unlawful or void for any reason; or
 - aa) The Borrower/Guarantor repudiates or evidences an intention to repudiate this Agreement or any other related document; or
 - bb) In the event of happening of natural calamities/force majeure conditions, causing deterioration in the value of Asset (judgment over which the Company shall have an absolute discretion); or
 - cc) If the Loan or any part thereof is utilized for any purpose other than the purpose for which it is applied by the Borrower and sanctioned by the Company; or
 - dd) Any event or series of events occurs which, in the opinion of the Company, is reasonably likely to have a material adverse effect on the repayment ability of the Borrower; or
 - ee) The status of the Borrower/Guarantor changes from resident to non resident; or
 - ff) If any attachment, distress, execution or other process against the Borrower/Guarantor, or any of the hypothecated Asset/s is enforced or levied upon; or
 - gg) If the Borrower or the Guarantor is charged or convicted by any Court of law or Government authorities for any offence; or
 - hh) If the Borrower/Guarantor dispute any of the terms under this or any other agreement entered into with the Company or its affiliates; or
 - ii) If any event of default or any event which would constitute an event of default happens, the Borrower shall forthwith give the Company notice thereof in writing specifying the occurrence of such event of default. The Borrower/Guarantor shall also promptly inform the Company if and when any statutory notice of winding up under the provisions of the Companies Act, 2013 or any other law or of any suit or legal process intended to be filed/initiated against the Borrower/Guarantor is received by the Borrower/Guarantor; or On the question whether any of the above events/circumstances has occurred, the decision of the Company shall be final, conclusive and binding on the Borrower/Guarantor; or

11. REPOSSESSION, TERMINATION AND COMPANY'S OTHER RIGHTS:

- a) On the occurrence of any of the aforesaid Events of Default contained in Article 10, the rights of the Borrower over the Asset shall stand determined void ipso facto without any notice and the Borrower shall be bound to deliver forthwith the Asset to the Company in the same condition in which it was originally received by him with all accessories/modifications done by Borrower whatsoever, ordinary wear and tear excepted and if the Asset is a vehicle, original Certificate of Registration with applicable Forms as prescribed in the statutes and/ or Rules made thereunder shall also be delivered to the Company along with the Asset. Failure or refusal of the Borrower to surrender the Asset shall constitute unlawful retention for which the Company shall be entitled to initiate legal action, without prejudice to other rights/ legal remedies available to the Company.
- Notice: In case of any default in repayment including an occurrence of any of the aforesaid Events of Default and/or failure to surrender the Asset as mentioned herein above, the Company shall cause a 7 day notice to be issued to the Borrower at his address as registered with the Company. The notice shall be deemed to be served on the Borrower on the second working day following the date of posting or the actual date of receipt whichever is earlier even if the notice so served returns unserved for whatever reason and the confirmation from any authorized officer of the Company for having posted the notice to the Borrower shall be final and binding in this regard.
 - Repossession: In case the Borrower fails to make payment of the dues or surrender the asset to the Company and/or rectify the breach of the terms of the contract in compliance with the notice mentioned above, to the satisfaction of the Company, without prejudice to its other rights available under the Agreement, the Company may be entitled to take possession of the Asset (referred to as "repossession") and for the said purpose, enter any place or places where the Asset may then be or is likely to be, remove or take possession of the same. The Borrower agrees and undertakes not to prevent or obstruct the Company from exercising its right of repossession of the Asset in the event of default by the Borrower. It shall be the sole responsibility of the Borrower to remove any goods (perishable, non-perishable) available in the Asset at the time of its repossession by the Company and the Borrower shall make his/their own arrangements to transfer such goods from the said Asset to and transport it back at his own cost and expenses and the Company shall not be liable to the Borrower for any damage, depreciation value, loss in transit etc. or for any damages arising on account of non-delivery of the same to anyone during or after such repossession.
 - Post Repossession: Upon taking possession of the Asset, as a final chance to rectify the default, a 7 days notice shall be caused by the Company to the Borrower to repay the termination price (which includes the charges and expenses incurred for taking possession of the Asset including the legal expenses). The notice shall be deemed to be served on the Borrower on the second working day following the date of posting or the actual date of receipt whichever is earlier even if the notice so served returns unserved for whatever reason and the confirmation from any authorized officer of the Company for having posted the notice to the Borrower shall be final and binding in this regard.
 - Waiver of Notice: Notwithstanding anything to the contrary contained in this Agreement, the said notices mentioned here in above can be waived at the discretion of the Company, on the happening of any of the Events of Default specified in Article 10 (c), (d), (g), (i), (j), (k), (l), (m) and (gg).
 - On payment of the termination price within the time and manner stipulated in the notice mentioned above, the Company shall return the repossessed Asset to the Borrower or his authorized representative to be specified in writing by the Borrower. In case of failure on the part of the Borrower to make payment of the termination price within the time and manner stipulated in the notice mentioned above, the Company shall sell, dispose of the asset in the manner it may deem fit without any further notice to the Borrower notwithstanding exercising any other legal remedy or right against the Borrower available to it.
 - The Borrower hereby irrevocably authorizes the Company to sell/transfer/assign the Asset without the intervention of Court either by private treaty or public auction or in such other manner as the Company may deem fit. The Borrower shall not be entitled to raise any objection regarding the regularity of the sale and/or actions taken by the Company nor shall the Company be liable/responsible for any loss that may occasion by the exercise of such power and/or may arise from any act or default on the part of any broker or auctioneer or other person or body engaged by the Company for the said purpose.
 - The Borrower shall forthwith deliver to the Company all original certificates and policies of insurance including Certificate of Registration (where the Asset is a vehicle), keys and all other documents relating to the Asset. In the event of the failure of the Borrower to do so, the Company shall be entitled to immediately apply to the concerned authorities and obtain the documents afresh, expenses for which shall be charged to the account of the Borrower and shall form part of the amount payable on the determination of this Agreement. The Borrower agrees and undertakes that he shall not raise any objection for such application by the Company.
 - Upon sale of the Asset and adjustment of the sale proceeds towards the Loan dues (which includes the expenses/charges incurred for parking, sale of Asset, in addition to the termination price), if there is any shortfall amount due and payable, the same shall be made good by the Borrower and/or the Guarantor. If there is any surplus amount available after such adjustment, the Company shall, subject to the right of lien and Set-off against the Borrower and Guarantor, refund the balance, if any to the Borrower.
- b) **Termination:**
On the surrender of the Asset by the Borrower or repossession thereof by the Company, notwithstanding the Term of Loan specified in the Schedule, the Agreement shall stand terminated without any notice.
Without prejudice to the foregoing and/or any of the terms contained in this Agreement on termination, this Agreement may also stand terminated:
- by efflux of time on expiry of the Term of Loan specified in Agreement; or
 - earlier by a notice in writing from the Company to the Borrower and Guarantor, of its decision to do on such termination, the Company shall have like powers of repossession of the Asset as in a case where any Event of Default had occurred.
- On termination in any manner as above:
- The Borrower and Guarantor shall not thereafter be entitled to the benefit of payment by installments of the amounts remaining payable which shall fall due immediately together with amount already in arrears, whether by way of installments, Penal Charges or on any other account whatsoever.
 - The Borrower shall be liable to pay Penal Charges on the termination price at the rate mentioned in the Schedule, calculated from date of termination until realisation of the payment in full.
- c) **Company's Other Rights:**
- It is specifically agreed between the parties that the charge created by the Borrower and/or the Guarantor as the case may be, with the Company under any other agreement shall be continuous regardless of all the dues under the said agreement being paid and the Company shall be at liberty to withhold the No Objection Certificate (NOC) on even completed agreements and to repossess and sell the Asset/s, without intervention of courts, hypothecated under any other agreements towards realization of dues payable under this Agreement.
 - In the event of sale of the Asset hypothecated under this Agreement or in the agreements connected hereto or enforcement of any other Security provided by the Borrower/ Guarantor, in pursuance of this Agreement, the Company shall not be liable for any loss or deficiency in the amount realized or answerable for any decrease in the value of the Asset/Security. Such sale shall be done by the Company without any accountability to the Borrower and the Guarantor and the Company shall not be liable for loss/ damage/ diminution in value of Asset/Security on account of exercise or non exercise of rights by the Company and the Borrower/ Guarantor shall not be entitled to raise any claim against the Company on the grounds that a larger sum or amount might or ought to have been received or dispute their liability for the remaining dues under this Agreement.
 - Without prejudice to the rights of the Company to initiate any legal proceedings for recovery of the outstanding, the Borrower and the Guarantor expressly accept that the Company shall be entitled to appoint third parties as it may deem fit and such third parties can carry out all or any of its functions, rights and powers under this Agreement including the authority to collect dues from the Borrower, without any prior consent of the Borrower.
 - It is expressly agreed and understood that the repossession and/or sale of the Asset on occurrence of any Event of Default shall not be a condition precedent for the enforcement of claim for any amount due under this Agreement by the Company against the Borrower and/or Guarantor personally.
 - Any inability, failure or omission on the part of the Company to repossess the Asset shall not affect its right to terminate the Agreement at any time if it so decides, nor shall constitute condonation of the default or waiver thereof or affect the right of recovery of all amounts due under the Agreement personally from the Borrower and/or Guarantor.
 - Notwithstanding anything stated elsewhere in this agreement, the continuation of the loan after such termination, shall be at the sole and absolute discretion of the Company and the Borrower's outstanding shall be payable to the Company, as decided by the Company at the relevant time. The Company may, at any time, at its sole discretion and without assigning any reason whatsoever, call upon the Borrower to repay the Borrower's outstanding and thereupon the Borrower shall, immediately on being so called upon, pay the whole of the Borrower's outstanding to the Company without any delay whatsoever. The amount of dues stated to be payable by the Borrower shall be final and binding on the Borrower.
 - In case there is a suspicion, indication of wrongdoing or fraudulent activity with respect to the loan and/or other financial transactions of the Borrower, the Company shall be entitled to conduct an audit on its own through its employee(s), agent(s) and/or an external audit through external auditor(s)/accountant(s) of Company's choice at the Borrower's costs and expenses. The Borrower shall allow the Company's employee(s), agent(s), accountant(s)/auditor(s) access to its office(s)/premises and to all their records and furnish whatever information/records required by them for the purpose of the said audit. On the basis of the audit report(s) received by the Company from its employee(s), agent(s) and/or external auditor(s)/accountant(s) or on the basis of the relevant materials/records available with the Company and its own investigation/ assessment in the event where the audit report(s) submitted remains inconclusive or is delayed due to non-cooperation by the Borrower, the Company shall conclude on status of the loan account as a fraud or otherwise. The Company will follow the extant guidelines of the RBI in concluding the status of loan account as a fraud or otherwise.
 - In the event of the Borrower is holding more than one loan account or the group company(ies) of the Borrower holding loan accounts with the Company, if one loan account of the Borrower is identified as a fraud by the Company, the Company shall be entitled to examine/conduct aforesaid audit with respect to the other accounts of Borrower/its group company(ies) wherein one or more promoter(s) / whole-time director(s) of the Borrower are common.
 - The Company shall also be entitled to report the incidents of fraud in the loan accounts of the Borrower/its group companies to appropriate law enforcement agency(ies) such as police, other relevant authorities and/or RBI.

12. APPROPRIATION:

- a) The Company shall have a right to appropriate any payment due and payable under the Loan Agreement and made by the Borrower towards dues in any order the Company deems fit, towards the following:
- Repayment of principal due.
 - Interest.
 - Penal Charges, if any.
 - Interest on costs, charges, expenses and other monies.
 - Premium on Preclosure, if applicable.
 - Costs, charges, expenses and other monies.

It is specifically agreed between the parties hereto that if the Borrower/Guarantor has, besides this Agreement, already entered into or in future enters into, any other loan / hire purchase / lease or other Agreement/s with the Company either in his/their name or in the name of his/their nominees or representatives, as either a Borrower/hirer/lessee or Guarantor, then:

- any payment made by the Borrower/Guarantor or his/their nominees, representatives as the case may be under this Agreement, shall be treated as only an "on account payment" and shall be appropriated by the Company at its sole discretion to the account of any of the agreements entered into by the Borrower, his/their nominees or representatives with the Company, whether during its tenure or thereafter as the Company deems fit regardless of any specific instructions to the contrary.
- the Company shall be at liberty to take possession / sell the Asset mentioned in the Schedule towards realization of the dues payable by the Borrower or his/their nominees, representatives under any other agreement entered into by them with the Company regardless of all the amounts due and payable under this Agreement are paid and settled and without prejudice to the Company's other rights vested under such agreements.

- d) The charge created by the Borrower or the Guarantor as the case may be under any other agreement with the Company shall be continuous and the Company shall be at liberty to withhold the No objection Certificate (NOC) even on completed agreements and to repossess and sell the Asset/s, without intervention of courts, given to the Borrower under any other agreements towards realization of the dues payable by the Borrower or the Guarantor under this agreement.
- e) Without prejudice to the rights of the Company stated hereunder the Borrower/Guarantor hereby agrees and consents that the security provided under this agreement shall also act as a continuing security against all the outstanding borrowings, if any, with the Company under any other agreement and the Company shall have the absolute discretion to liquidate and appropriate the security provided under this agreement to settle all such outstanding of the Borrower/Guarantor under any other agreement notwithstanding the fact that there may not be an event of default under this agreement.
13. **COVENANTS AND REPRESENTATIONS OF THE BORROWERS AND THE GUARANTOR:**
The Borrower and Guarantor do hereby confirm and declare the following to the Company
- a) That the Borrower and Guarantor are Ordinary Resident Indian Citizens and will continue to remain so during the tenure of this loan.
 - b) The Borrower/Guarantor has adequate legal capacity to enter into and execute this Agreement. The Borrower/Guarantor is not restricted or prevented in any manner under any law, statute, judgment, decree, ruling, contract or otherwise from executing and undertaking the obligations in the manner provided in this Agreement. Upon execution, this Agreement shall be a valid and legally binding commitment of the Borrower/Guarantor enforceable against him in terms of this Agreement. The Borrower/Guarantor (in case of being a Company/limited liability partnership firm/ other body corporate) is duly organised and existing under the laws of India with due power and authority to enter into this Agreement to which it is a party and their representatives are also duly authorised.
 - c) The execution of this agreement is not in conflict with any law/constitutional documents, or with any other document which is binding on the Borrower/Guarantor.
 - d) No encumbrance of any nature or any lien exists over the Asset mentioned in the Schedule.
 - e) The Borrower/Guarantor has obtained and done all that is necessary to give full force and effect to all authorisations, approvals, consents, licenses and permissions required in relation to this Agreement, collateral documents and the hypothecated Asset.
 - f) That all statements of accounts sent by the Company or by any other authorised representative of the Company are acceptable by the Borrower and Guarantor and shall be conclusive proof of the correctness of any sum claimed to be due from the Borrower.
 - g) That any notice or correspondence shall be addressed at the address given by the Borrower/Guarantor, and the same would be deemed to have been served on the addressee within 3 days from the date of its dispatch and that in the event of any change in the address of the Borrower and Guarantor, they shall forthwith intimate the same to the Company failing which service of a notice or correspondence to the address last given by them shall be deemed to be served on them.
 - h) That the Company shall be entitled to sell, assign or transfer the Company's right and obligations under the Agreement to any person(s) of the Company's choice in whole or in part and in such manner and on such terms as the Company may decide without any notice to the Borrower/Guarantor and that any such sale, assignment or transfer shall be binding on the Borrower/Guarantor and that they shall not be entitled to directly or indirectly assign the benefit or obligation of this Agreement.
 - i) That absence or infirmity of borrowing powers on the part of the person representing the Borrower or any irregularity in the exercise thereof shall not affect the rights of the Company against the Borrower and Guarantor under this agreement notwithstanding such absence, infirmity or irregularity.
 - j) The Borrower/Guarantor has paid all taxes and statutory dues payable by him and has not received any demand, claim or notice from any person or authority. Further the Borrower shall bear and pay all taxes, assessments, rates, duties, charges and other imposts, outgoings and obligations, existing as well as future, in respect of the transaction and the Hypothecated Asset to the Government, Municipal Corporation, Regional Transport Authority or any other authority and produce receipt of payment when demanded. Further, the installments shall automatically stand increased by any rates, charges, imposts, levies and/or monies whatsoever that are or may be levied on the installments by the Government or the transaction hereunder or which are or may become payable by the Company by virtue of entering into this Agreement.
 - k) The Borrower shall ensure, where the Asset is a vehicle, that it shall be used in compliance with the Motor Vehicles Act or Rules framed thereunder and as per the laws of the land.
 - l) Assures that no suits, actions or claims of any nature whatsoever is/are pending or are likely to be filed or taken (whether civil or criminal or otherwise) against the Borrower/Guarantor.
 - m) Assures that the Company shall be under no liability towards any claim regarding the Borrower's/Guarantor's rights or position with respect to any law relating to taxation or any other matter.
 - n) Utilise the entire Loan only for the purpose of purchase of the Asset mentioned in the Schedule hereunder or in case of refinancing to such use as disclosed by the Borrower and shall not use the same for speculative including investment in capital market or real estate/antiscial/illegal activities.
 - o) The Borrower shall not be entitled to call upon the Company to refrain from presenting any cheque and/or any instruction for payment to the bank on account of "Stop Payment" instructions or for any reason whatsoever and if the Borrower does so, the Company shall nevertheless be entitled to present the cheque(s) and/or carry out any instructions given to the Company for payment.
 - p) Shall obtain the prior written permission of the Company before borrowing any amount from other banks, financial institutions.
 - q) In case of the Asset being a vehicle, get the same registered in his name within such time as provided under Motor Vehicles Act, 1988 as amended and in force from time to time and ensure that the hypothecation in favour of the Company is duly endorsed and recorded in the certificate of registration and submit a copy hereof to the Company without any delay.
 - r) Be solely responsible for getting delivery of the Asset from the manufacturer or the dealer and verifying fitness, quality, condition, etc. of the same and shall intimate the Company immediately upon taking delivery of the Asset.
 - s) Not apply for any duplicate Certificate of Registration, otherwise than by delivering the application thereof to the Company for endorsing its charge on the vehicle(s).
 - t) If the Asset has not been delivered to or in the case of vehicle has not been registered in the name of the Borrower at the time of execution of the Agreement, the particulars of the hypothecated Asset that are not available at such time shall be intimated by the Borrower in writing within one week of such delivery/registration as the case may be.
 - u) Within one month of taking delivery of the Asset/vehicle, submit the original invoice and copy of the Registration Certificate. If applicable and Insurance Policy ensuring that the hypothecation in favour of the Company is duly endorsed therein. If the Borrower fails to submit the same as stipulated above, he shall pay a Penal Charge as stipulated in the Schedule to this Agreement until due submission thereof and the same is without prejudice to the other vested rights of the Company contained herein.
 - v) Fully and punctually comply with all laws, regulations and rules etc., and make payments of all charges levied or payable in respect of the Asset. The Borrower shall be solely responsible for use, operations and maintenance of the hypothecated Asset and any liability arising therefrom.
 - w) Ensure that the certified true copies of the Insurance Policy and the subsequent renewal certificates thereof are deposited with the Company. The Borrower shall assign/endorse to the Company every such policy and shall pay to the Company all proceeds of any policy received by the Borrower.
 - x) Promptly pay the insurance on the Asset and provide copies of the receipt to the Company. In case the Borrower does not pay the insurance, the Company shall have the right to pay the same and seek reimbursement from the Borrower. If the Borrower does not reimburse the amount within three days from the receipt of notice, the same together with interest as specified in Schedule will become due and payable to the Company along with the other dues.
 - y) Promptly inform the Company in writing of any loss or damage to the hypothecated Asset and pursue necessary claims with the insurers for the same; provided, any such loss or damage shall not relieve the Borrower or Guarantor of liability irrespective of whether or not the claim is admitted by the insurer.
 - z) Not use the hypothecated Asset for any improper or illegal or unlawful activities or adapt or alter the Asset for any act, which is improper or illegal or unlawful.
 - aa) Maintain the Asset in good order and condition and shall make all necessary repairs, additions and improvements thereto during the pendency of the Loan. Always keep the Company informed of the location of such Asset/vehicle. The Borrower shall not remove or allow to be removed the Asset/vehicle from the said location or store the Asset vehicle at any other place without the Company's written consent.
 - bb) Inform the Company, in writing of loss, destruction or misplacement of the Registration Book of the Asset or the insurance policy relating to the Asset, within three days of such damage or lodgment of claim. In such an event, the Company may, without prejudice to its other rights under this Agreement, require the Borrower to take such steps as may be necessary to protect the interests of the Company.
 - cc) Not allow to suffer any attachment or distress to be effected over the Asset or any part thereof or allow anything that may prejudice or endanger the security herein.
 - dd) Do such acts, deeds, assurances, matters and things as may be required by the Company for further assuring and confirming the Security created herein and the rights, powers and remedies hereby conferred and execute such document(s) at Borrower's own cost as may be required in this regard.
 - ee) Compensate and agree to keep the Company compensated and hold harmless from and against all costs, expenses, claims and actions (including third party liability in case of accidents, damage or otherwise) and make good all payments and expenses including legal costs, fees and expenses to take possession, insurance and sale of the Asset including all payments for rent or taxes for or on account of any matter or thing whatsoever paid or done by the Company and from all costs, charges and expenses properly incurred in protecting, prosecuting, defending or establishing their rights to or the property in the Asset.
 - ff) Not sell, transfer, create charge, assign, mortgage, pledge, hypothecate, let on hire or surrender or howsoever part with the possession of the Asset or deal with the Asset or any part thereof without the express written permission of the Company previously obtained except to the extent herein mentioned.
 - gg) Not have the vehicle re-registered wherein the Asset is a vehicle, in any other State without the consent of the Company in writing.
 - hh) At all times until release of the Asset from hypothecation, permit the Company and its officials, agents or men to inspect the Asset and to enter upon any premises where it may be kept; right of inspection shall not be denied or evaded at any point of time by the Borrower.
 - ii) If considered expedient by the Company to recover the Asset/vehicle for the purpose of carrying out repairs, agree and facilitate the same.
 - jj) Be liable to pay to the Company any expenses incurred by it in collecting or attempting to collect the payments due to the Company, including the expenses of postage, telegrams, telex, registered posts, telephone calls, legal proceedings and additional expenses of the representatives deputed for making collections, etc.
 - kk) All particulars, representations, declarations and information given by the Borrower are true, correct, complete and up to date, valid and subsisting in all respects and no information has been withheld. The Borrower shall provide necessary updation wherever required. Promptly notify the Company of any litigation, arbitration, administrative or other proceedings initiated against the Borrower.
 - ll) In case the Borrower is an entity other than individual then it shall comply with all applicable laws binding on them or their business.
 - mm) In case the Borrower is a Company, the Borrower has the power to avail this facility and the total borrowings are within the prescribed limit.
 - nn) The Borrower shall comply with and be bound by the Company's rules as may be prescribed by the Company from time to time.
 - oo) That the Company has a right of lien on all related accounts of the Borrower/Guarantor including such other accounts that may be entered into later/found to be related to the Borrower/Guarantor later (related accounts in this regard shall mean and include all accounts where the Borrower is a Guarantor and the Guarantor is a Borrower under any financial facility availed from the Company).
 - pp) The Borrower/Guarantor confirms that he/his family members/close relatives are not a politically exposed person as defined by the KYC guidelines of RBI. The Borrower/Guarantor further undertakes to intimate the Company immediately upon any change in the above status.
 - qq) The Borrower hereby undertakes that he/she shall not engage directly or indirectly in any activity which is in the exclusion list of the institutions such as International Finance Corporation and Asian Development Bank or engage in any activity which could endanger or adversely impact the social and economic environment of the country.
 - rr) That the Company shall have the right to classify the Borrower and/or the Guarantor, as the case may be, as wilful defaulter on occurrence of a wilful default and report the same to the credit information companies (CIC) and publish the name, photograph of the wilful defaulter (including proprietors/partners/directors/promoters of the Borrower and/or the Guarantor/persons in charge/responsible for the management of the affairs of the Borrower and/or the Guarantor, who have been declared as wilful defaulters) in newspaper(s) and/or such other mode at its sole discretion as deem fit, in compliance with the extant regulations of Reserve Bank of India (RBI).

The terms 'wilful default' and 'wilful defaulter' shall have the meaning as ascribed to it under the Reserve Bank of India (Treatment of Wilful Defaulters and Large Defaulters) Directions, 2024, as amended or repealed from time to time.

In respect of the classification of the wilful defaulter, the Borrower and Guarantor further covenants that:

- i. Neither the Borrower nor any of its directors/promoters/partners/ persons in charge/responsible for the management of the affairs of the Borrower, have been declared to be a wilful defaulter. The Borrower shall not induct a person whose name appears in the wilful defaulters list of RBI/CIC as director in case of it being a company or as a partner in case of it being a partnership firm or as in charge and responsible for the management of its affairs. In case such a person so appointed and continuing as director/partner/in charge of the Borrower is found to be a wilful defaulter, the Borrower shall take expeditious and effective steps for removal of that person as director/partner/ in charge and responsible for the management. It is clarified that under no circumstances, the Company shall renew/ enhance/ provide fresh credit facilities or restructure existing facilities provided to the Borrower so long as the name of its promoter and/or the director(s) and/or the person in charge and responsible for the management of the affairs of the entity remains in the list of wilful defaulters.
- ii. The Loan or any part thereof shall be utilised only for the purpose for which it is sanctioned and the Loan shall not be "diverted" or "siphoned off" or used for any other purposes. If the Company desires a specific certification from the Borrower's auditor(s) regarding diversion/siphoning of funds by the Borrower, the Company shall have the right to award a separate mandate to the auditor(s) of the Borrower for the purpose. However, if the Company so desires, Company shall be within its rights to get the Borrower's accounts audited by any of its employee(s)/the chartered accountant(s)/ auditor(s) of Company's choice for checking diversion/siphoning of funds, if any, at the Borrower's costs and expenses. The Borrower shall allow the Company's employee(s), chartered accountant(s)/auditor(s) access to its office(s)/premises and to all their records and furnish whatever information/records required by them for the said purpose.
- ss) "BENEFIT OF AGREEMENT" This Agreement shall be binding upon and enure to the benefit of the Borrower hereto and his/her/its heirs, executors, administrators, legal representative and successors. In case of death of the Borrower, such above-mentioned person/s shall do the following: (i) Replace the post dated cheques/ NACH or ECS mandates insurance premium cheques, fees, charges and residual cheques signed by the deceased Borrower, in the same manner as provided in this Agreement as if he were the Borrower in the first instance. (ii) Apply under Motor Vehicles Act and get the vehicles transferred in his name (iii) Execute a fresh agreement, power of attorney and such other documents as may be required by the Company.

Notwithstanding the above, the Company shall be entitled to exercise its sole discretion in determining whether or not to continue the Agreement with the legal representative. In case the legal representative does not or refuses to follow the above procedure or does not meet the Company's credit and other requirements, the Company shall be entitled to, at its sole discretion repossess/dispose of/sell/transfer the Asset/vehicle to any third party and the short fall on such recovery shall be recovered from the legal representative.

14. EXCLUSION:

- a) This Agreement has been entered into between the Company and the Borrower, based on the express desire and request of the Borrower to obtain Loan for purchase/refinance of the hypothecated Asset mentioned in the Schedule. It is expressly agreed that all details, specifications, descriptions of the Asset/s are those within the knowledge of the Borrower, who has identified and decided on the Schedule mentioned Asset, the dealer/manufacturer from whom to be purchased and price of the same. The Borrower acknowledges that the entire risk of non performance, breach or supply of inferior or damaged Asset shall be entirely upon him and the Company shall not be responsible or liable to the Borrower in that regard.
- b) Without prejudice to the generality of the foregoing, the Borrower acknowledges and agrees with the Company as under:
 - i) That the Schedule mentioned Asset to be given is of a size, design, capacity and manufacture selected by the Borrower,
 - ii) That the Borrower is satisfied that the Asset mentioned in the Schedule is suitable for the purpose intended to be used by him.
 - iii) That the Borrower has identified the Asset to be given, and relies on his own judgment in the selection of the Asset mentioned in the Schedule and not on any statements made by the Company or its officials, agents or servants.
 - iv) That there will be no warranty of fitness or that the Asset mentioned in the Schedule is merchantable.
 - v) That the Asset to be purchased shall be accepted by the Borrower with all faults and defects (if any) as received from the dealer/manufacturer (as the case may be).
 - vi) That the Company has not made and does not hereby make any representation or warranty with respect to the merchantability, condition, quality, durability or suitability of the Asset in any respect.
 - vii) That all promises warranties and conditions, express or implied by statute or otherwise whether given hereunder or collateral hereto otherwise, are hereby excluded,
 - viii) That the rights of the Company shall not be affected and the obligations of the Borrower shall be enforceable notwithstanding any liability, claim, loss, damage or expense of any kind or nature:-
 - 1) caused directly or indirectly due to non delivery, delay in delivery of the Asset from the manufacturer or dealer, any demurrage, cost or the quality/condition/fitness of the Asset or any inadequacy thereto for any purpose or any defect therein or by the use thereof.
 - 2) in relation to any repairs, servicing, maintenance, or adjustments thereto, or to any delay in providing or failure to provide the same in relation to any interruption or loss of use thereof or any loss of business or any damage whatsoever and howsoever caused.
 - ix) That the Borrower is obliged to pay the installments and other amounts as and when they are due under this Agreement on their Due Dates, regardless of whether the Asset is/are delivered or not or for any reason whatsoever. However, in case the Asset is not delivered to the Borrower/delivery not taken by the Borrower, within 3 months from the date on which the Company makes full/part or any disbursement to the dealer or any disbursement, the Company may, at its sole option and discretion, terminate this Agreement and on such termination, the Borrower shall pay to the Company, whatever amounts have been paid by the Company pursuant to this Agreement whether as payment towards advances, booking costs, etc to the dealer or the Borrower or to any other person pursuant to these presents. Such amounts shall be reimbursed by the Borrower to the Company together with Penal Charges chargeable from the date on which such amounts have been paid by the Company until actual date on which the Borrower repays the amount to the Company.

15. USE OF THE ASSET:

- a) The Borrower shall ensure to use the hypothecated Asset only for the lawful business and shall also use the same in such a manner not to offend or violate any statutory provision relating to prohibition, excise and other Acts, Central or State.
- b) The Borrower undertakes to keep the Asset covered by a valid permit wherever necessary during the continuance of this Agreement and to use the Asset only for the purpose mentioned in the proposal form submitted by the Borrower at the time of availing the financial facility and strictly in accordance with the terms and conditions laid down in the permit, if any, issued to him by the Registering Authority having jurisdiction over purchase, storage, usage of the Asset/s.
- c) The Borrower undertakes not to use the Asset either by himself or through his servants or agents for any purpose not permitted by the terms and conditions of the insurance policy nor do or permit to be done any act or thing which might render the insurance invalid and in particular, not to use the Asset/vehicle for transport of goods, articles, etc. in contravention of any of the provisions of the Acts of Central and State Legislatures relating to Forest, Excise, Customs, Sales-tax, Prohibition, Opium, Railway Property, Unlawful Possession, Gold Control, etc. and not to engage it in any unlawful or illegal activity and the Borrower shall be responsible for any damage or loss sustained by the Company in respect of the Asset, as a result of such wrongful or unlawful use. The Borrower undertakes to use the Asset only for the use indicated by the Borrower to the Company and as stated in this Agreement, at his own cost and expense.
- d) The Borrower shall ensure to keep the said Asset in his own custody and control, in good substantial working order, repair, maintain and not remove the said Asset from his address or other permitted address without the previous consent of the Company in writing.
- e) The Borrower shall obtain the pollution emission clearance certificate from time to time in respect of the Asset, being a vehicle.

16. INSURANCE AND MAINTENANCE:

- Immediately upon execution of this Agreement and until release of the Asset from hypothecation and full settlement of the Loan by the Borrower to the satisfaction of the Company:
- a) The Borrower shall keep the Asset fully and properly insured at his cost against risks of fire, riots, civil commotions, floods, earthquake, tsunami, theft and all such risks to which the Asset is normally exposed through necessary, comprehensive or other policies of insurance, besides against unlimited third party liability risks.
 - b) The Company shall have the right to receive any payment from insurers under any claim for loss or damage to the Asset. The Borrower hereby irrevocably authorises the Company to claim insurance proceeds and appropriate the same thereof against the amount due and payable under this Agreement. The Borrower shall not dispute or contest the entitlement of the Company to receive payment from the insurers and shall if necessary, execute necessary letters, vouchers, discharge or other documents to facilitate receipt of payment by the Company. The Borrower shall comply with all directions with respect to insurance policy and its renewal, as may be stipulated by the Company from time to time.
 - c) The Borrower shall punctually pay all premia and other sums required for keeping the said insurance effective and produce and deliver the certified true copies of the Insurance Policy and the subsequent renewal certificates thereof to the Company. The Borrower shall assign/endorse to the Company every such policy. Each insurance policy shall be in the name of the Borrower with the requisite endorsement in favour of the Company as 'Loss payee' and additional endorsement in favour of the Company's bankers, if so required by the Company.
 - d) The Company may at its sole discretion get the insurance done on behalf of the Borrower, by being a facilitator and the Borrower shall reimburse the cost of such insurance. Nothing herein contained shall be construed as a commitment by the Company to keep the Asset insured, which shall be the duty of the Borrower and no claim shall be made against the Company for any loss or damage to the Asset by reason of it remaining uninsured.
 - e) At the request of the Borrower the Company may at its sole discretion also finance the insurance premium for insuring the Asset/s and/or the risk of personal accident, hospitalization, critical illness of the Borrower and/or for amount of loan, by way of insurance policy with the Company name being marked as a loss payee. At the specific request of the Borrower/s, the Company may make such payments directly to the insurance company at its respective due dates on behalf of the Borrower and such insurance premium and other charges shall form part of the Loan amount.
 - f) The Borrower shall not use the Asset for any purpose not permitted by the terms and conditions of the insurance policy and shall not do or permit to be done any act or thing, which might render the insurance invalid.
 - g) The Borrower shall, at his cost and without undue delay carry out repairs to the Asset occasioned by any accident or for any other reason and shall produce bills in respect of insurance claim to the insurance company for settlement. If there are no over dues against the Borrower, the Company shall pass on to him such benefits as the Company receives from the insurance company in respect of any claim.
 - h) The Borrower shall ensure to maintain and keep the Asset/s in good and serviceable order and condition to the satisfaction of the Company and bear all expenses of repairing and maintaining the same whether occasioned by fire, accident or otherwise.
 - i) The first claim on any insurance proceed during the subsistence of this Agreement shall be that of the Company and the Borrower irrevocably authorises the Company to act at the Borrowers risk and cost and on the Borrowers behalf to take necessary steps actions and proceedings and compromise any claim as the Company deems fit, to safeguard the interest of the Company and receive such claims. The Borrower shall not be entitled to raise any claim against the Company in case the Company chooses not to take any action in this regard. Such an act of the Company shall not be construed as a waiver of any rights under this Agreement. In case of an insurance claim, the Company at its sole discretion shall receive and appropriate the claim proceeds. In case of total loss to the Asset, if the amount settled by the insurance company is less than the amounts payable by the Borrower and due to the Company as per the Agreement, the Borrower hereby undertakes to immediately pay the Company the balance outstanding amount. The Borrower hereby agrees and undertakes not to raise any dispute with regard to the settlement arrived at by the Company with the insurer.

17. LIABILITIES OF GUARANTOR:

- a) The Guarantor hereby guarantees to the Company that in the event of the Borrower failing to pay the Installments on the Due Dates or discharge any of his liabilities under this Agreement, the Guarantor assures, undertakes and holds himself liable to the Company to pay on demand any such amounts without dispute or demur. However, any failure or delay on the part of the Company to make a demand on the occurrence of any default shall not relieve the Guarantor of liability under this Agreement.